



Mines (Working Facilities and Support) Act 1974

1974 CHAPTER 36

An Act to amend the Mines (Working Facilities and Support) Act 1966. [31st July 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following paragraph shall be substituted for paragraph 1 of the Table to section 1 of the Mines (Working Facilities and Support) Act 1966:—

“ TABLE

Paragraph 1 of Table.

(1) This paragraph applies to any minerals other than coal and peat cut for purposes other than sale.

(2) A right to search for or work any minerals to which this paragraph applies may be conferred on any person (exercisable either by himself or through a lessee).

(3) Where the working of any minerals to which this paragraph applies, or the working of any such minerals in the most efficient and economical manner, is impeded by any restrictions, terms or conditions contained in a mining lease, or otherwise binding on the person entitled to work the minerals, a right may be conferred to work the minerals freed wholly or partially from the restrictions or conditions, or to work the minerals on other terms and conditions.”

Amendment of paragraph 1 of the Table to section 1 of the Mines (Working Facilities and Support) Act 1966.

1966 c. 4.

Repeals.
1971 c. 78.
1972 c. 52.

2.—(1) Section 265 of the Town and Country Planning Act 1971 and section 252 of the Town and Country Planning (Scotland) Act 1972 (which provide for modification of the said Act of 1966 where a development plan provides that any land is to be used for the purpose of securing the winning and working of minerals) are hereby repealed.

(2) Where an application for the grant of a right under section 1 of the said Act of 1966 has been duly made to the Secretary of State, at any time before the coming into force of this Act, the said Act of 1966 shall have effect in relation to that application as it would have had effect if this Act had not been passed.

Short title
and extent.

3.—(1) This Act may be cited as the Mines (Working Facilities and Support) Act 1974.

(2) This Act shall not extend to Northern Ireland.